The examination is being carried out on the **following application documents**

Description, Pages

1-5 as published

Claims, Numbers

1-10 filed in electronic form on 03-10-2017

Drawings, Sheets

1/2, 2/2 as published

Reference is further made to the following document:

D2 US 6 837 014 B2 (VIRTANEN THOMAS [FI]) 4 January 2005 (2005-01-04)

NOVELTY

Independent claim 1

D2 discloses (figures 5, 9, 10) a method for manufacturing an underlay material to be set under parquet or a laminate (column 1, lines 6-8), said underlay material consisting of a sheet material layer (2) in the form of a material web and a flexible cellular plastic material layer (formed by the multiple parallel strips 13; see column 5, lines 21-23 disclosing foam) bonded under the sheet material layer, and a bottom surface of said cellular plastic layer being processed for providing an air space (gaps between projections 3), wherein the bottom surface of the cellular plastic material layer is processed by melting the cellular plastic material locally ("locally" is a relative term, for which the present application gives no more precise definition, wherein the flexible cellular plastic material layer formed by the strips 13 is locally melted since only those projections which have just been extruded are still in a molten state) for providing an air space and for simultaneously bonding the cellular plastic material layer to the sheet material layer (column 9, lines 20-26).

With regard to the remaining feature "the cellular plastic material layer is provided in the form of a material web", it is noted that the applicant seems to give the term "web" a very particular and narrow meaning, whereby according to the applicant the extruded layer formed by the multiple parallel strips 13 does not fall within the definition of a web.

It is however emphasized that the application as a whole does not appear to provide any specific definition to the term "web", and which would possibly exclude the extruded layer of D2 from such definition.

All the features of claim 1 are therefore disclosed in D2, so that the subject-matter of claim 1 is not new within the meaning of Article 54(1) and (2) EPC.

Independent claim 6

D2 discloses (see above) an underlay material to be placed under parquet or a laminate, said underlay material consisting of a sheet material layer in the form of a material web and a flexible cellular plastic material layer bonded under the sheet material layer, and said cellular plastic having recesses on its bottom surface for providing an air space.

As to the remaining feature wherein the cellular plastic material layer in the form of a material web is bonded to the sheet material layer only by melting the plastic material at the recesses formed in the cellular plastic material layer, the applicant's attention is drawn to the fact that claim 6 is directed to a product whereas this feature is directed to the process by which the product has been obtained.

It is however not systematically possible to derive beyond any doubt, from a given product, whether only part of the plastic material layer or all of it was molten at the time of bonding, so that this feature may not be retained for directly and unambiguously distinguishing the claimed product from the prior art.

Since all other features are disclosed in D2, the subject-matter of claim 6 is not considered new within the meaning of Article 54(1) and (2) EPC.

SUGGESTION

In view of the cellular layer of D2 being extruded directly before its application onto the sheet material layer 2, it is considered that adding the feature "the web type sheet material 1 and cellular plastic material 3 are web-fed from the reels 2 and 4" (see page 4, lines 6-9 as well as figure 1 of the present application) into claim 1 would unambiguously distinguish the claimed method from that of D2 (only sheet material layer 2 is web-fed from a reel according to D2), thereby rendering claim 1 novel.

The applicant would still need to discuss the presence of an inventive step, using the problem-solution approach.

With regard to independent product claim 6, reference is made to Article 64(2) EPC wherein if the subject-matter of the European patent is a process, the protection conferred by the patent shall extend to the products directly obtained by such process.

A new claim 1 amended as suggested above would thus confer protection to the resulting product.

It is however noted that this suggestion is only for assisting the applicant in his decision on how to proceed. It in no way precludes consideration of alternative solutions submitted by the applicant. The responsibility for determining the text of the application (Article 113(2) EPC) and in particular for defining the subject-matter for which protection is sought remains with the applicant, in particular by ensuring that the requirements of Article 123(2) EPC are met.